No. 25-0792

IN THE SUPREME COURT OF TEXAS

State of Texas, Petitioner

v.

F.M.V., a Juvenile, Respondent

On Petition for Review from the Eighth Court of Appeals, El Paso

---

PETITIONER'S BRIEF ON THE MERITS

Kevin McCary
Assistant County Attorney
320 S. Campbell St, Ste. 200
El Paso, Texas 79901
Tel: (915) 273-3248
K.McCary@epcountytx.gov
Texas Bar No. 24046381

Attorneys for Petitioner

IDENTITIES OF PARTIES AND COUNSEL

Trial Court Judge: Hon. Yahara Lisa Gutierrez, Judge, 65th District Court, 500 E. San Antonio, Suite 1105, El Paso, TX 79901.

For Respondent/Appellee F.M.V., a juvenile: Kelli Childress, Public Defender; Rene Alberto Vargas, Deputy Public Defender; Todd Morten, Deputy Public Defender; 500 E. San Antonio Avenue, Suite 501, El Paso, Texas 79901.

For Petitioner, the State of Texas: Christina Sanchez, County Attorney, Appellate Counsel; Kevin McCary, Assistant County Attorney, Appellate Counsel; April Galvan, Assistant County Attorney, Trial and Appellate Counsel; 320 S. Campbell Street, Suite 200, El Paso, Texas 79901; Dimitri N. Rocha, Assistant Solicitor General, Dimitri.Rocha@oag.texas.gov, State Bar No. 24147002.

TABLE OF CONTENTS

IDENTITIES OF PARTIES AND COUNSEL ii

STATEMENT OF THE CASE 1

STATEMENT OF JURISDICTION 2

ISSUES PRESENTED 2

INTRODUCTION 3

STATEMENT OF FACTS 5

- The Offense and Investigation 5
- Detention, Interrogation, and Magistration Timeline 6
- Procedural History and Disposition 8

SUMMARY OF THE ARGUMENT 8

STANDARD OF REVIEW 9

ARGUMENT 10

- I. Non-courthouse magistration settings do not compromise the statutory safeguards of Section 51.095. 10
- II. The Court of Appeals exceeded its authority by discarding the trial court's record-supported findings of fact. 11

CONCLUSION AND PRAYER 12

CERTIFICATE OF COMPLIANCE 13

CERTIFICATE OF SERVICE 13

APPENDIX 13

INDEX OF AUTHORITIES

Cases

Baptist Vie Le v. State, 993 S.W.2d 650 (Tex. Crim. App. 1999) 11

Guzman v. State, 955 S.W.2d 85 (Tex. Crim. App. 1997) 10

Hereford v. State, 339 S.W.3d 111 (Tex. Crim. App. 2011) 10

In re L.J., No. 03-04-00807-CV, 2005 WL 3338302 (Tex. App.—Austin Dec. 9, 2005, no pet.) 9

In re R.J.H., 79 S.W.3d 1 (Tex. 2002) 9

Le v. State, No. 14-94-01265-CR, 2000 WL 1335290 (Tex. App.—Houston [14th Dist.] Sept. 14, 2000, pet. ref'd) 11

Matter of F.M.V., 720 S.W.3d 494 (Tex. App.—El Paso 2025, pet. filed) 2, 10, 11

McIntyre v. State, 619 S.W.3d 311 (Tex. App.—Fort Worth 2021, pet. ref'd) 10

Williams v. State, 995 S.W.2d 754 (Tex. App.—San Antonio 1999, no pet.) 10

Statutes

Tex. Fam. Code § 51.01 9

Tex. Fam. Code § 51.095 ..... 2, 4, 5, 7, 8, 9, 10

Tex. Fam. Code § 51.12(f) 3

Tex. Gov't Code § 22.001(a), (b) 2

Rules

Tex. R. App. P. 56.1(a)(5) 4

Tex. R. App. P. 56.1(a)(6) 5

STATEMENT OF THE CASE

Nature of the Case: This is a civil juvenile prosecution under the Texas Family Code.

Trial Court Judge: Hon. Yahara Lisa Gutierrez.

Trial Court: 65th District Court, El Paso County, Texas.

Course of the Proceedings: The State charged the juvenile via a determinate sentence petition with five counts of deadly conduct and discharge of a firearm in civil proceedings in the 65th District Court, a designated juvenile court. (C.R. 44-46). A jury adjudicated him delinquent on all five counts on March 22, 2024. (C.R. 229-233). The trial court conducted a disposition hearing and sentenced him to three years in the Texas Juvenile Justice Department. (C.R. 244-246). This appeal followed.

Trial Court Disposition: The trial court adjudicated the juvenile delinquent and ordered him to serve three years in the Texas Juvenile Justice Department. (C.R. 244-246).

Parties in the Court of Appeals: F.M.V. (the juvenile) and the State of Texas.

Appellate Court District: 8th Appellate District.

Appellate Justices: Salas Mendoza, C.J., Soto, Palafox, JJ.

Citation of the Appellate Opinion: Matter of F.M.V., 720 S.W.3d 494 (Tex. App.—El Paso 2025, pet. filed).

Appellate Court Disposition: The Eighth Court of Appeals reversed and remanded the case for further proceedings. No hearings or motions are pending before the Court of Appeals. The State now moves the Supreme Court to review the opinion and judgment of the Court of Appeals.

STATEMENT OF JURISDICTION

This Court has jurisdiction over this appeal because the issue raised is important to the jurisprudence of the state, and it has already been considered by a court of appeals. Tex. Gov't Code § 22.001(a), (b).

ISSUES PRESENTED

1. Whether a juvenile's signed incriminating statement is admissible under Texas Family Code § 51.095 where law enforcement officers were located within sight during the magistration process but were unable to hear or interact with the juvenile.
2. Whether the Court of Appeals violated established standards of appellate review by conducting a de novo visual review of bodycam footage and substituting its own judgment for the trial court's explicit, record-supported findings of historical fact.

INTRODUCTION

On a November evening in 2022, gunmen fired more than thirty bullets into the home of Maria de Los Angeles Ramirez and Leonardo Ramirez Torres. Fourteen-year-old juvenile F.M.V. later confessed to guiding two, armed accomplices to the home and pointing it out before the shooting began. These substantive facts are undisputed.

The procedural facts are equally straightforward. Following his detention, F.M.V. was thoroughly advised of his *Miranda* rights; provided a written confession; and brought before a magistrate to review and sign the statement.

When he was magistrated, the judge conducted the examination outside on the premises to keep him out of an adult facility. *See* Tex. Fam. Code § 51.12(f) (requiring that "a child detained in a building that contains a jail, ….be separated… from adults detained in the same building."). Because F.M.V. was unrestrained on an open sidewalk, officers maintained a visual line-of-sight to fulfill their duty of keeping physical custody over a juvenile accused of a violent felony, a security precaution Magistrate Priddy judged necessary because she could not assume responsibility for preventing an escape.

To guarantee an independent process, investigating officers remained stationed approximately 30 feet away, entirely out of earshot and unable to interact

with F.M.V. while the magistrate conducted her examination. F.M.V. felt comfortable enough to make corrections to his statement before signing it.

At trial, F.M.V. moved to suppress his confession, arguing that the mere sight of distant officers violated Texas Family Code § 51.095(a)(1)(B)(i), which mandates that no law enforcement officer be "present" during the magistrate's examination. The trial court conducted a full evidentiary hearing, issued explicit findings of fact, and concluded the statute was satisfied because the officers exerted no physical or auditory influence over the process.

The Eighth Court of Appeals reversed, holding that visual line-of-sight ("in view") alone constitutes law enforcement "presence." In doing so, the court created an inflexible, bright-line rule, ignoring the broader statutory framework. It also improperly discarded the trial court's record-supported factual findings by conducting its own independent video review.

This case thus presents an issue of first impression regarding the proper statutory construction of Texas Family Code § 51.095. In adopting a rigid line-of-sight test, "[t]he court of appeals appears to have committed an error of law of such importance to the state's jurisprudence that it should be corrected." Tex. R. App. P. 56.1(a)(5). And, by replacing a fact-bound inquiry with an inflexible rule and stripping trial courts of historical fact-finding deference, the Court of Appeals "has decided an important question of state law that should be resolved by this Court."

Tex. R. App. P. 56.1(a)(6). This Court should grant review to correct the Court of Appeals' inflexible standard; restore proper deference to trial court fact-finding; and clarify that Section 51.095 requires a contextual inquiry as to whether the magistrate's examination was free from law enforcement influence.

STATEMENT OF FACTS

The Offense and Investigation

On November 22, 2022, El Paso County Sheriff's deputies responded to a shooting in Canutillo, Texas, where more than thirty bullets struck the home of Maria De Los Angeles Ramirez and Leonardo Ramirez Torres. (R.R. Vol. II 160:1; R.R. Vol. III 54:24–55:6). Torres sustained an eye injury from metal shrapnel. (R.R. Vol. III 58:25). Investigating detectives located scene ballistics and surveillance video of a suspect, white Dodge Charger driven by an adult co-actor, Andre Gilmer. (R.R. Vol. III 78:16–18, 81:3–5, 84:15). A subsequent search warrant recovered weapons matching the scene's shell casings. (R.R. Vol. III 89:22–23).

The investigation focused on F.M.V.'s actions arising from an earlier altercation between F.M.V.'s friends and the victims' son. (R.R. Vol. III 78:7–12). F.M.V.'s mother, who had reported him as a runaway, provided information to Sheriff's Detective Bastardo. (R.R. Vol. III 37:19–22). Additionally, F.M.V.'s

girlfriend stated that F.M.V. sent her a video of the shooting and admitted his involvement. (R.R. Vol. III 90:23–25).

Detention, Interrogation, and Magistration Timeline

Following his detention, F.M.V. was systematically provided statutory warnings before providing a written statement.

- December 1, 2022, 12:08 p.m. – Detention: Detective Bastardo picked up F.M.V. from his home and transported him directly to a designated Juvenile Processing Office at the Vinton Patrol Station. (R.R. Vol. I 52:16–25; R.R. Vol. III 104:13–15; C.R. 145 ¶ I.b.).
- 12:49 p.m. – Initial Warnings: After F.M.V. expressed a desire to make a statement, Detective Bastardo administered initial *Miranda* warnings. F.M.V. executed a department juvenile warning sheet at 12:49 p.m. (R.R. Vol. I 53–55; R.R. Vol. I, State's Ex. 5; R.R. Vol. III 104:13–105:9).
- 1:00 p.m. – Statutory Magistration: Detective Bastardo transported F.M.V. downtown to the Jail Magistrate, ensuring F.M.V. remained isolated from adult detainees to prevent intimidation. (Mot. Supp. R.R. Vol. I 56:6–9, 15–18). Between 1:00 p.m. and 1:30 p.m., Magistrate Judge Sara Priddy administered official statutory warnings. (R.R. Vol. III 107:5–6). Outside the jail facility, Judge Priddy read those rights in sequence and questioned

F.M.V. to ensure full comprehension, highlighting his right to terminate the interview. (Mot. Supp. R.R. Vol. I 12:13–25, 13:1–3, State's Ex. 1).

- 1:43 p.m. – Statutory Waiver: F.M.V. indicated a clear understanding of his rights and agreed to provide a statement. Law enforcement officers remained at a distance, completely removed from the warning process. (R.R. Vol. I 9:21–25, 13:5–9). At 1:43 p.m., F.M.V. and Judge Priddy executed the Statutory Warnings of Juvenile by Magistrate pursuant to Texas Family Code § 51.095(a)(1)(A). (R.R. Vol. I, State's Ex. 1).
- 2:13 p.m. – Written Statement: F.M.V. was taken to the Juvenile Probation Department, where Detective Bastardo typed F.M.V.'s statement as F.M.V. spoke. (R.R. Vol. I 58:11–20; R.R. Vol. III 104:15). The written statement was completed at 2:13 p.m. (R.R. Vol. I, State's Ex. 2; R.R. Vol. I 59:1–7; R.R. Vol. III 110:22–113:1).
- 3:22 p.m. – Magistrate Review and Certification: Judge Priddy met outside with F.M.V. to review the typed statement. Detective Bastardo withdrew approximately thirty feet away, remaining within visual range for security but entirely unable to hear or participate in the conversation. (Mot. Supp. R.R. Vol. I 60:5–16; R.R. Vol. III 105:7–9; R.R. Vol. III 156:2–4; Mot. Supp. Vol. I, State's Ex. 3). F.M.V. reviewed the document, crossed out one line he deemed inaccurate, and both he and the magistrate initialed the

correction. (Mot. Supp. R.R. Vol. I 61:9–15; R.R. Vol. III 108:6–10). Judge Priddy signed the official statutory certification confirming that the statement was executed pursuant to Texas Family Code § 51.095(a)(1)(D). (Mot. Supp. R.R. Vol. I, State's Ex. 3). F.M.V. was then returned for intake processing at 3:30 p.m. (Mot. Supp. R.R. Vol. I 61:4–5).

Procedural History and Disposition

The State referred F.M.V. to the Juvenile Probation Department on five counts of Deadly Conduct via Discharge of a Firearm. (R.R. Vol. III 109:1–2; C.R. 44-46). On March 22, 2024, a jury in the 65th District Court found F.M.V. delinquent on all five counts. (C.R. 229-233; C.R. 234). F.M.V. elected to have the trial judge determine disposition. On March 22, 2024, the court sentenced F.M.V. to a three-year commitment within the Texas Juvenile Justice Department. (C.R. 244-46).

SUMMARY OF THE ARGUMENT

The Court of Appeals erred in its construction of Texas Family Code § 51.095 and by discarding the trial court's record-supported findings of fact.

The Court of Appeals' rigid "line-of-sight" definition of "presence" is inconsistent with the statutory scheme and unworkable in practice. Section 51.095 uses "presence" or "present" multiple times in subsection (a)(1)(B)(i) alone. Under canonical rules of construction, words repeated within a single provision must

carry a uniform meaning. Defining "presence" as visual line-of-sight leads to absurd results when applied to the rest of the statute—such as allowing a magistrate standing down the block to satisfy the requirement of supervising a signature. Properly construed in context with the statutory scheme, "presence" requires physical-influence or sensory proximity, insulating the juvenile from auditory and physical pressure during magistration.

Stationing officers at a distance of 30 feet synthesized two statutory mandates: preserving physical custody of a felony suspect under Section 51.01(1) and ensuring magisterial independence under Section 51.095(a)(1)(D). Because F.M.V. was unrestrained on an open sidewalk, officers could not abandon their custodial duties. Officers merely maintained necessary security without compromising the independent nature of the magistrate's examination. This Court should grant review, correct the appellate court's overreach, and affirm the trial court's order.

STANDARD OF REVIEW

As with the Court of Appeals, this Court reviews a trial court's ruling on a juvenile's motion to suppress under a bifurcated standard of review. *See In re L.J.*, No. 03-04-00807-CV, 2005 WL 3338302, *2 (Tex. App.—Austin Dec. 9, 2005, no pet.) (applying the same bifurcated standard in juvenile cases as in adult criminal proceedings), citing *In re R.J.H.*, 79 S.W.3d 1, 6 (Tex. 2002). An appellate court

affords "almost total deference to a trial court's determination of the historical facts that the record supports especially when the trial court's fact findings are based on an evaluation of credibility and demeanor." *Guzman v. State*, 955 S.W.2d 85, 89 (Tex. Crim. App. 1997); *see also Hereford v. State*, 339 S.W.3d 111, 118 (Tex. Crim. App. 2011) (discussing deference).

ARGUMENT

I. Non-courthouse magistration settings do not compromise the statutory safeguards of Section 51.095.

To an outsider, conducting a statutory magistration outside the traditional confines of a courtroom or judicial chambers may appear unconventional at first blush. *See Matter of F.M.V.*, 720 S.W.3d 494, 510 (Tex. App.—El Paso 2025, pet. filed). Below, the Court of Appeals conceded that "a courtroom or other confined space in a courthouse is not the only place a magistrate is permitted to meet with a juvenile…." *Id.* Yet Texas courts have consistently affirmed magistrations occurring in non-traditional settings—including jails and juvenile probation facilities—so long as the core statutory safeguards are preserved. *See, e.g.*, *McIntyre v. State*, 619 S.W.3d 311, 314-19 (Tex. App.—Fort Worth 2021, pet. ref'd) (initial and subsequent magistration in "Mansfield Public Safety Building" interview rooms); *Williams v. State*, 995 S.W.2d 754, 758 (Tex. App.—San

Antonio 1999, no pet.) (initial and subsequent magistration in magistrate's office).[1] In this case, the Court should reverse the judgment of the Court of Appeals because the setting did not compromise core statutory safeguards.

II. The Court of Appeals exceeded its authority by discarding the trial court's record-supported findings of fact.

The Court of Appeals acknowledged the bifurcated standard of review, applied to a motion to suppress. *Matter of F.M.V.*, 720 S.W.3d 494, 507 (Tex. App.—El Paso 2025, pet. filed). But it failed to apply with proper deference where—as here—Findings of Fact and Conclusions of law are present. (C.R.145-48). Following a full evidentiary hearing where it weighed witness demeanor and reviewed digital evidence, the trial court entered explicit Findings of Fact:

1. The juvenile signed his statement in front of Judge Priddy with no law enforcement present.
2. Judge Priddy examined the Juvenile independent of any law enforcement officer or prosecuting attorney.
3. Judge Priddy concluded that the Juvenile understood the nature and contexts [sic] of his statement and has knowingly, intelligently, and voluntarily waived his rights. (C.R.146 at ¶¶ I. p, q, r.)

[1] *See also Baptist Vie Le v. State*, 993 S.W.2d 650, 651, 656 (Tex. Crim. App. 1999) (juvenile magistrated by two different magistrates) (McCormick, P.J., dissenting); *Le v. State*, No. 14-94-01265-CR, 2000 WL 1335290 (Tex. App.—Houston [14th Dist.] Sept. 14, 2000, pet. ref'd) (finding no harm on remand).

CONCLUSION AND PRAYER

This Court has never had the opportunity to address the meaning of "presence" in this section of the Family Code, but it should do so now. "Presence" should not be read in isolation to mean "in view," "line of sight," or "per se visual" presence. That reading does structural violence to the other uses of "presence" in the statute.

For all these reasons, Petitioner, the State of Texas, prays that this Court reverse the judgment of the Court of Appeals and affirm the delinquency adjudication of the trial court.

Respectfully submitted,

CHRISTINA SANCHEZ,
EL PASO COUNTY ATTORNEY
320 S. Campbell St, Ste. 200
El Paso, Texas 79901
Tel: (915) 273-3248
Fax: (915) 273-3277
Email: K.McCary@epcountytx.gov

By: /s/ Kevin McCary
Kevin McCary
Assistant County Attorney
Texas Bar No. 24046381

Attorneys for Petitioner

CERTIFICATE OF COMPLIANCE

Pursuant to the Texas Rule of Appellate Procedure 9.4(i)(1), (3), I hereby certify that this Appellate Brief contains 1,957 words. This is a computer-generated document using 14-point typeface for all text and 12-point footnotes.

/s/ Kevin McCary
Kevin McCary

CERTIFICATE OF SERVICE

I certify that on July 29, 2026, a true and correct copy of the foregoing pleading was filed electronically through EFile.TXCourts electronic filing system and electronically served upon the attorney for the Juvenile, Kelli Childress at k.childress@epcountytx.gov via electronic mail, Rene Vargas at ReVargas@epcountytx.gov, and Todd D. Morten t.morten@epcountytx.gov.

/s/ Kevin McCary

Kevin McCary

APPENDIX

1. Tex. Gov't Code §22.001(a), (b)
2. Tex Fam. Code § 51.12 (f)
3. Tex Fam. Code § 51.095
4. Tex Fam. Code § 51.01
5. Article 42.03 § 1(a) of the Texas Code of Criminal Procedure

6. Article 14.03(d) of the Texas Code of Criminal Procedure

7. Article 14.01 of the Texas Code of Criminal Procedure